

20STCV10085 20STCV10085

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Division: Civil Law and Motion

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Case Number: 20STCV10085 Hearing Date: August 14, 2026 Dept: 513

Wright v. Carroll,

20STCV10085

Ex Parte

Application 8/14/26

Plaintiffs

are correct in stating in their ex parte application that, as of December 3, 2025, the discovery cutoff was December 29, 2025 (i.e., 30 days before the trial date then set for January 28, 2026).

(Stipulation and order, filed February 24, 2025, p. 4.) For purposes of the discovery cutoff, “discovery is considered completed on the day a response is due or on the day a deposition begins.” (Code Civ. Proc., § 2024.010.) Thus, the parties were permitted to begin taking any depositions on or before December 29, 2025.

In the Order on Ex Parte Application, filed December 3, 2025, the court ordered that the discovery cutoff was “extended and shall be based on the new trial date” (October 21, 2026) “only for discovery requests that have already been served”

Thus, in that order, the court extended the discovery cutoff date to September 21, 2026 only for discovery requests that had already been served as of December 3, 2025.

In the stipulation and order filed August 3, 2026, the court ordered, in relevant part, that the deadline to complete discovery proceedings for depositions is extended and shall be based on the new trial date (June 9, 2027) “only as to depositions for which the notice of deposition

was served before 12/3/25." Thus, the court's August 3, 2026 order did not change the discovery cutoff dates for depositions that were established by the court's previous orders. In other words, the parties (1) had the right to begin taking any depositions on or before December 29, 2025, and (2) now have the right to begin taking depositions on or before May 10, 2027 "only as to depositions for which the notice of deposition was served before 12/3/25." (Stipulation and order, filed August 3, 2026, p. 4.)

The court therefore denies plaintiffs' ex parte application for order correcting and/or modifying order entered on August 3, 2026.

The court orders plaintiffs to give notice of this order.